SUPREME COURT OF INDIA

APPELLATE JURISDICTION · FULL CONSTITUTION BENCH (13 JUDGES)

Writ Petition (Civil) No. 135 of 1970 **CNR: SCIN010001351970**

Date of Pronouncement: 24 April, 1973 *Citation: (1973) 4 SCC 225*

CORAM: Hon'ble S.M. Sikri, C.J., J.M. Shelat, K.S. Hegde, A.N. Grover, A.N. Ray, P

Petitioner / Appellant: His Holiness Kesavananda Bharati Sripadagalvaru

- VERSUS -

Respondent / State: State of Kerala & Another

SUBJECT: CONSTITUTIONAL LAW & BASIC STRUCTURE **AUTHORITY: Good Law (13-Judge Basic Structure Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE PRINCIPLES:

Article 368 does not enable Parliament to alter the basic structure or framework of the Constitution. The constituent power of Parliament is plenary but subject to the inherent limitation that the Constitution's foundational pillars cannot be abrogated.

STATUTORY PROVISIONS INTERPRETED: Article 368, Article 13, Article 14, Article 19, Article 31

FINAL DISPOSITION: BASIC STRUCTURE DOCTRINE ENUNCIATED

EXECUTIVE SUMMARY:

Historic 13-judge bench ruling establishing the Basic Structure Doctrine: Parliament has wide powers to amend the Constitution under Article 368 but cannot alter or destroy its essential features or basic foundation.

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